

Opinion of GORSUCH, J.

them. It would hardly make sense to ignore that two-step process and count the State's reliance interests in final judgments both here and again there. Certainly the dissent cites no authority for such double counting.

Instead, the dissent suggests that the feeble reliance interests it identifies should get a boost because the right to a unanimous jury trial has "little practical importance going forward."⁷⁵ In the dissent's telling, Louisiana has "abolished" nonunanimous verdicts and Oregon "seemed on the verge of doing the same until the Court intervened."⁷⁶ But, as the dissent itself concedes, a ruling for Louisiana would invite other States to relax their own unanimity requirements.⁷⁷ In fact, 14 jurisdictions have already told us that they would value the right to "experiment" with nonunanimous juries.⁷⁸ Besides, Louisiana's law bears only prospective effect, so the State continues to allow nonunanimous verdicts for crimes committed before 2019.⁷⁹ And while the dissent speculates that our grant of certiorari contributed to the failure of legal reform efforts in Oregon, its citation does not support its surmise. No doubt, too, those who risk being subjected to nonunanimous juries in Louisiana and Oregon today, and elsewhere tomorrow, would dispute the dissent's suggestion that their Sixth Amendment rights are of "little practical importance."

That point suggests another. In its valiant search for reliance interests, the dissent somehow misses maybe the most important one: the reliance interests of the American people. Taken at its word, the dissent would have us discard a Sixth Amendment right in perpetuity rather than ask two States to retry a slice of their prior criminal cases. Whether that slice turns out to be large or small, it cannot outweigh the

⁷⁵ *Post*, at 141.

⁷⁶ *Ibid.*

⁷⁷ *Post*, at 142.

⁷⁸ Brief for State of Utah et al. as *Amici Curiae* 1.

⁷⁹ See 2018 La. Reg. Sess., Act 722.